

MASTER SERVICES AGREEMENT

Cloud Analytics & Managed Reporting Services

between

NIMBUS ANALYTICS PVT. LTD.

("Provider")

and

ORCHARD RETAIL GROUP LLC

("Client")

Effective Date: 21 July 2026

Document Reference: NA-ORG-MSA-2026-014 (FICTIONAL — TEST FIXTURE ONLY)

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Recitals

WHEREAS, Provider operates a cloud-based analytics and managed reporting platform purpose-built for multi-location retail operators;¹

WHEREAS, Client operates a network of retail locations and desires to engage Provider to supply certain analytics, reporting, and related professional services described herein;

WHEREAS, the Parties desire to set out the general terms and conditions that will govern the Parties' commercial relationship, with specific commercial terms for each engagement to be set out in one or more Order Forms referencing this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Definitions and Interpretation

This Master Services Agreement (this “**Agreement**”) is entered into as of the Effective Date by and between Nimbus Analytics Pvt. Ltd., a company incorporated under the laws of India (“**Provider**”), and Orchard Retail Group LLC, a limited liability company organized under the laws of Delaware (“**Client**”), each a “**Party**” and together the “**Parties**.”

1.1 Defined Terms

“**Affiliate**” means, with respect to any entity, any other entity that directly or indirectly controls, is controlled by, or is under common control with such entity.

“**Business Day**” means any day other than a Saturday, Sunday, or public holiday.¹

“**Confidential Information**” has the meaning given in Section 6.1.

“**Documentation**” means the user manuals, technical specifications, and other materials provided by Provider describing the Services.

“**Services**” means the cloud-based analytics, dashboarding, and managed reporting services described in [Section 2 \(Scope of Services\)](#) and each applicable Order Form.

“**Order Form**” means a mutually executed ordering document referencing this Agreement.

1.2 Rules of Interpretation

Unless the context otherwise requires:

1. the singular includes the plural and vice versa;
2. references to “include” or “including” are illustrative and not limiting;
3. headings are for convenience only and shall not affect interpretation;
4. references to Sections, Exhibits, and Appendices are to those of this Agreement, and further:
 1. cross-references remain valid notwithstanding renumbering upon amendment,
 2. except where a Change Order expressly supersedes the referenced Section, in which case the parties shall execute a conformed copy for the file;
5. monetary references are in United States Dollars (US\$) unless otherwise stated.

1.3 Additional Defined Terms

“**Change Order**” means a written document, signed by both Parties, that modifies the scope, fees, or timeline set out in an Order Form.

“**Client Data**” means all data, content, and information submitted by or on behalf of Client to the Services, excluding Provider's own operational telemetry.

“**Contract Year**” means each successive twelve-month period beginning on the Effective Date or an anniversary thereof.

“**Deliverables**” means any work product Provider creates specifically for Client under a statement of work, excluding Provider's pre-existing tools and methodologies.

“**Downtime**” means any period during which the Services are unavailable to Client, excluding Scheduled Maintenance Windows and Force Majeure Events.

“**Malicious Code**” means viruses, worms, time bombs, trojan horses, and other harmful or malicious code, files, scripts, agents, or programs.

“**Order Effective Date**” means the date on which an Order Form is countersigned by both Parties, unless a different date is specified therein.

“**Scheduled Maintenance Window**” means a period, not exceeding four hours per calendar month, during which Provider may take the Services offline for planned maintenance upon at least 72 hours' prior notice.

“**Subscription Term**” means the period during which Client is entitled to access the Services under a given Order Form, as specified therein.

“**Usage Data**” means data collected by Provider regarding Client's configuration and use of the Services, used to maintain, support, and improve the Services.

2. Scope of Services

Provider shall furnish the following categories of Services, as further detailed in the applicable Order Form:

- Managed Analytics Platform
 - real-time ingestion pipelines for point-of-sale and inventory data;
 - pre-built retail KPI dashboards refreshed at 15-minute intervals; anomaly-detection alerts for shrinkage and demand spikes;
- Managed Reporting
 - monthly executive summary packs;
 - quarterly business review decks prepared by Provider's analytics team;
- Professional Services
 - implementation and data-migration assistance;
 - custom dashboard development on a time-and-materials basis.

2.1 Out-of-Scope Items

For the avoidance of doubt, the Services do not include on-premises hardware, third-party POS licensing fees, or bespoke machine-learning model training beyond the anomaly-detection features described above, unless separately agreed in writing.

2.2 Service Delivery Diagram

Figure 1 below illustrates Provider's quarterly delivery cadence (illustrative placeholder graphic):

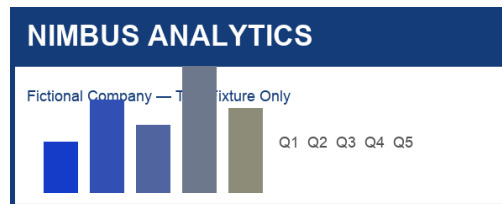


Figure 1: Provider brand mark and illustrative quarterly volume chart.

2.3 Implementation Methodology

Provider follows a four-phase implementation methodology for each new Order Form: (i) Discovery and Data Mapping, during which Provider's implementation team catalogs Client's source systems and data schemas; (ii) Configuration, during which dashboards, connectors, and alerting rules are configured against Client's Client Environment; (iii) User Acceptance Testing, during which designated Client personnel validate reports and dashboards against expected outputs; and (iv) Go-Live, following which the Services transition into standard support under Appendix G.

2.3.1 Client Responsibilities

Client shall provide timely access to relevant source systems, designate a project sponsor and technical point of contact, and complete User Acceptance Testing within the timeframes set out in the Onboarding Plan. Delays attributable to Client's failure to meet these responsibilities shall extend the Go-Live Date on a day-for-day basis without penalty to Provider.

2.3.2 Provider Responsibilities

Provider shall assign a dedicated implementation lead, provide weekly status updates during the Discovery and Configuration phases, and use commercially reasonable efforts to meet the Target Go-Live Date set out in the applicable Order Form.

2.4 Change Management

Either Party may propose a Change Order at any time. Change Orders affecting fees, the Subscription Term, or the scope of Services require review by the Change Management Board for changes exceeding the threshold set out in the Glossary (Appendix E), and shall not take effect until signed by authorized representatives of both Parties.

2.5 Service Availability Reporting

Provider shall make available to Client, via a self-service dashboard within the Managed Analytics Platform, a rolling twelve-month view of Uptime Percentage, Incident history, and Severity Level classifications, updated no less frequently than daily.

3. Term and Termination

3.1 Initial Term

This Agreement commences on the Effective Date and continues for an initial term of thirty-six (36) months (the "Initial Term"), unless earlier terminated in accordance with this Section 3.

3.2 Renewal

Following the Initial Term, this Agreement automatically renews for successive twelve (12) month periods (each, a "Renewal Term") unless either Party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

3.3 Termination for Cause

Either Party may terminate this Agreement upon thirty (30) days' written notice if the other Party materially breaches this Agreement and fails to cure such breach within the notice period.

3.4 Termination for Convenience

Client may terminate any Order Form for convenience upon ninety (90) days' written notice, subject to payment of the Early Termination Fee set out in Appendix A.

3.5 Effect of Termination

Upon termination or expiration, Client shall pay all undisputed Fees accrued through the effective date of termination, and Provider shall, upon written request made within thirty (30) days, export Client Data in a commonly used machine-readable format.

3.6 Suspension for Non-Payment

If any undisputed invoice remains unpaid more than fifteen (15) days after Provider's written notice of non-payment, Provider may, without liability, suspend Client's access to the Services until such amounts are paid in full, provided Provider shall give at least five (5) Business Days' further notice before any such suspension takes effect.

3.7 Data Retention Following Termination

Provider shall retain a copy of Client Data for thirty (30) days following termination or expiration solely to facilitate export under Section 3.5, after which Provider shall securely delete or anonymize all remaining copies of Client Data in its possession or control, except to the extent retention is required by applicable law.

3.8 Transition Assistance

Upon Client's written request made prior to the effective date of termination, and subject to payment of Provider's then-current professional services rates, Provider shall provide reasonable transition assistance for a period not to exceed ninety (90) days to facilitate Client's migration to a successor provider.

4. Fees and Payment Terms

Client shall pay the fees set out in the applicable Order Form and summarized in Table 1 below.³

4.1 Subscription Tiers

Tier	Eligibility	Monthly Fee (US\$)	Annual Fee (US\$)
Starter	Up to 5 retail locations	\$1,200	\$12,960 (10% off)
Growth	6–25 retail locations	\$3,400	\$36,720 (10% off)
Scale	26–100 retail locations	\$8,900	\$92,760 (13% off)
Enterprise	101+ retail locations	Custom quote	Custom quote

Table 1: Standard subscription pricing tiers.

4.2 Invoicing and Late Payment

Provider shall invoice Client monthly in arrears. Invoices are due within thirty (30) days of receipt. Amounts not paid when due shall accrue interest calculated as:

where I = accrued interest, P = outstanding principal, r = the annual interest rate of 1.5% above the prime rate, and t = the number of days overdue.⁵

4.3 Taxes

Fees are exclusive of applicable taxes, which Client shall bear except for taxes on Provider's net income.

5. Service Level Agreement

Provider commits to the service levels set out in Table 2.²

Service Level Commitments			
Metric	Target	Measurement Window	Service Credit
Platform Uptime	99.9%	Calendar Month	5% of monthly fee per 0.1% shortfall
Dashboard Load Time	< 2.5 seconds (p95)		3% of monthly fee
Support Response (P1)	< 1 hour		2% of monthly fee

Table 2: SLA metrics, targets, and associated service credits.

5.1 Exclusions

Scheduled Maintenance Windows, Force Majeure Events, and issues caused by Client's own infrastructure are excluded from SLA calculations.

6. Data Protection and Confidentiality

6.1 Confidential Information

"Confidential Information" means any non-public information disclosed by one Party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

6.2 Data Processing

Provider shall process Client Data solely to provide the Services and in accordance with the Data Processing Addendum attached as Appendix B, which is incorporated herein by reference.

6.2.1 Sub-processors

Provider may engage sub-processors to support delivery of the Services, provided Provider remains liable for such sub-processors' acts and omissions.

6.2.2 Security Measures

Provider maintains administrative, technical, and physical safeguards designed to protect Client Data, including encryption at rest and in transit, role-based access controls, and annual third-party penetration testing.

6.3 Publicly Available Resources

Provider's public security overview is available at <https://example.com/nimbus-analytics/trust-center> (illustrative URL for this fictional test document).

6.4 Confidentiality Obligations

Each Party shall (a) protect the other Party's Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar importance, and in no event less than a reasonable degree of care; (b) not disclose such Confidential Information to any third party except to its employees, contractors, and advisors who have a need to know and are bound by confidentiality obligations at least as protective as those herein; and (c) not use such Confidential Information for any purpose outside the scope of this Agreement.

6.5 Exceptions

The obligations in Section 6.4 do not apply to information that: (a) is or becomes publicly available through no fault of the receiving Party; (b) was rightfully known by the receiving Party prior to disclosure; (c) is rightfully obtained by the receiving Party from a third party without breach of any confidentiality obligation; or (d) is independently developed by the receiving Party without use of or reference to the disclosing Party's Confidential Information.

6.6 Compelled Disclosure

If either Party is compelled by law to disclose the other Party's Confidential Information, it shall, to the extent legally permitted, provide the other Party with prior notice so that the other Party may seek a protective order or other appropriate remedy.

6.7 Security Incident Notification

Provider shall notify Client without undue delay, and in any event within seventy-two (72) hours, upon becoming aware of a confirmed security incident affecting Client Data, and shall provide Client with information reasonably necessary for Client to meet its own notification obligations under applicable law.

6.8 Audit Rights

No more than once per Contract Year, and upon at least thirty (30) days' prior written notice, Client may request a summary of Provider's then-current SOC 2 Type II report or equivalent third-party audit report in lieu of an on-site audit, except where applicable law grants Client a direct audit right that cannot be so satisfied.

7. Intellectual Property

7.1 Ownership

As between the Parties, Provider owns all right, title, and interest in and to the Services, the underlying software, and Documentation, including all intellectual property rights therein.

7.2 Client Data

As between the Parties, Client owns all right, title, and interest in and to Client Data. Client grants Provider a limited, non-exclusive license to use Client Data solely to provide the Services.

7.3 Feedback

If Client provides suggestions or feedback regarding the Services, Provider may use such feedback without restriction or obligation to Client.

7.4 Third-Party and Open Source Components

The Services may include components licensed under third-party or open-source licenses. Such components are provided subject to the applicable third-party license terms, which are made available upon request and which, in the event of any conflict, shall govern solely with respect to those components.

7.5 Trademarks

Neither Party shall use the other Party's trademarks, service marks, or logos without the prior written consent of the owning Party, except as expressly permitted for the limited purpose of identifying the Parties' business relationship in marketing materials approved under Section 11.12.

7.6 Reservation of Rights

All rights not expressly granted to a Party under this Agreement are reserved by the Party granting the applicable license or right.

8. Limitation of Liability

EXCEPT FOR LIABILITY ARISING FROM A PARTY'S BREACH OF ITS CONFIDENTIALITY OBLIGATIONS, GROSS NEGLIGENCE, OR WILLFUL MISCONDUCT, neither Party's aggregate liability arising out of or related to this Agreement shall exceed the total Fees paid or payable by Client in the twelve (12) months preceding the event giving rise to the claim. This liability cap shall not apply to any breach of the confidentiality obligations set forth in Section 6.

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, including loss of profits, revenue, or data, even if advised of the possibility of such damages.

8.1 Basis of the Bargain

The Parties acknowledge that the limitations of liability set forth in this Section 8 are an essential basis of the bargain between the Parties and that, absent such limitations, the pricing and other terms set forth in this Agreement would be substantially different.

8.2 Carve-Outs

Notwithstanding Section 8, the limitations of liability in this Section 8 shall not apply to: (a) a Party's indemnification obligations under Section 9; (b) Client's payment obligations under Section 4; or (c) either Party's breach of Section 6 (Data Protection and Confidentiality), to the extent of direct damages only.

8.3 Allocation of Risk

Each Party acknowledges that it has had the opportunity to negotiate the limitations of liability set forth in this Agreement and that such limitations reflect a reasonable allocation of risk between sophisticated commercial parties.

9. Indemnification

9.1 Provider Indemnity

Provider shall indemnify and hold harmless Client from third-party claims alleging that the Services infringe such third party's intellectual property rights, subject to the limitations in Section 8.

9.2 Client Indemnity

Client shall indemnify and hold harmless Provider from third-party claims arising from Client's misuse of the Services or breach of Section 6 (Data Protection and Confidentiality).

9.3 Indemnification Procedure

The indemnified Party shall: (a) promptly notify the indemnifying Party of the claim in writing, provided that failure to promptly notify shall not relieve the indemnifying Party of its obligations except to the extent materially prejudiced thereby; (b) grant the indemnifying Party sole control of the defense and settlement of the claim, provided any settlement that imposes liability or obligations on the indemnified Party requires its prior written consent, not to be unreasonably withheld; and (c) provide reasonable cooperation, at the indemnifying Party's expense.

9.4 Mitigation

If the Services become, or in Provider's reasonable opinion are likely to become, the subject of an infringement claim, Provider may, at its option and expense, (a) procure for Client the right to continue using the Services, (b) replace or modify the Services to be non-infringing without material loss of functionality, or (c) if neither option is commercially reasonable, terminate the affected Order Form and refund any prepaid, unused Fees.

10. Dispute Resolution

10.1 Escalation

The Parties shall first attempt to resolve any dispute through good-faith negotiation between designated executive sponsors within fifteen (15) Business Days.

10.2 Arbitration

Any dispute not resolved through escalation shall be finally settled by binding arbitration administered under the Commercial Arbitration Rules then in effect, seated in Wilmington, Delaware, before a single arbitrator.

10.3 Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles.

10.4 Injunctive Relief

Notwithstanding Section 10.2, either Party may seek injunctive or other equitable relief in a court of competent jurisdiction to prevent actual or threatened infringement, misappropriation, or violation of a Party's intellectual property rights or Confidential Information.

10.5 Costs

The arbitrator shall have the authority to award costs and reasonable attorneys' fees to the prevailing Party, in addition to any other relief awarded.²

10.6 Waiver of Jury Trial and Class Actions

EACH PARTY WAIVES ANY RIGHT TO A JURY TRIAL AND TO PARTICIPATE IN A CLASS, COLLECTIVE, OR REPRESENTATIVE ACTION IN CONNECTION WITH ANY DISPUTE ARISING OUT OF OR RELATING TO THIS AGREEMENT, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW.

11. General Provisions

11.1 Force Majeure

Neither Party shall be liable for delay or failure to perform resulting from causes beyond its reasonable control, including acts of God, war, terrorism, labor disputes, or governmental action.⁴

11.2 Assignment

Neither Party may assign this Agreement without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets.

11.3 Notices

All notices shall be in writing and delivered to the addresses set out in the applicable Order Form, and shall be deemed given upon confirmed delivery.

11.4 Entire Agreement

This Agreement, together with all Order Forms and Appendices, constitutes the entire agreement between the Parties and supersedes all prior agreements relating to its subject matter.

11.5 Counterparts

This Agreement may be executed in counterparts, each of which is deemed an original, and all of which together constitute one instrument.

11.6 Severability

If any provision of this Agreement is held invalid or unenforceable, that provision shall be enforced to the maximum extent permissible, and the remaining provisions shall remain in full force and effect.

11.7 No Third-Party Beneficiaries

This Agreement does not confer any rights or remedies upon any person other than the Parties and their permitted successors and assigns.

11.8 Relationship of the Parties

The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties.

11.9 Subcontractors

Provider may use subcontractors to perform its obligations under this Agreement, provided Provider remains responsible for such subcontractors' performance as if performed by Provider itself.

11.10 Export Control and Sanctions

Each Party shall comply with all applicable export control and economic sanctions laws and regulations in connection with its performance under this Agreement.

11.11 Anti-Corruption

Each Party represents that it has not offered or provided, and shall not offer or provide, any improper payment or benefit to any government official or other person in connection with this Agreement.

11.12 Publicity

Neither Party shall issue any press release or public statement regarding this Agreement without the other Party's prior written consent, except as required by law or applicable stock exchange rule.

11.13 Survival

Sections 1 (Definitions), 6 (Data Protection and Confidentiality), 7 (Intellectual Property), 8 (Limitation of Liability), 9 (Indemnification), 10 (Dispute Resolution), and this Section 11 shall survive termination or expiration of this Agreement.

11.14 Insurance

During the Term, Provider shall maintain commercial general liability insurance, technology errors and omissions insurance, and cyber liability insurance, in each case with coverage limits customary for providers of similar services, and shall furnish certificates of insurance upon Client's reasonable request.

11.15 Government End Users

If Client is a U.S. government entity, the Services are provided as "commercial items" and any use, duplication, or disclosure by the U.S. government is subject to the restrictions set forth in this Agreement.

11.16 Waiver

No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver of that right, nor shall any single or partial exercise of a right preclude any other or further exercise of that or any other right.

11.6 Amendment Log (Illustrative Tracked Changes)

This Agreement may be amended only by a written instrument signed by , and no waiver of any provision shall be deemed a waiver of .

Appendix A: Detailed Pricing Schedule

This Appendix sets out the complete, itemized pricing schedule referenced in Section 4. Rates are quoted in US Dollars and exclude applicable taxes.

Line Item	Unit	Year 1 Rate (US\$)	Year 2+ Rate (US\$)	Note
Data Ingestion — Standard Connector	per connector / month	150	160	1
Data Ingestion — Custom API Connector	per connector / month	450	475	2
Dashboard Seat — Viewer	per seat / month	12	13	1
Dashboard Seat — Editor	per seat / month	35	37	1
Dashboard Seat — Admin	per seat / month	60	63	1
Managed Reporting — Monthly Pack	per pack / month	300	315	3
Managed Reporting — Quarterly QBR Deck	per deck / quarter	900	945	3
Professional Services — Implementation	per hour	185	195	5
Professional Services — Custom Dashboard Build	per hour	165	175	5
Data Storage — Hot Tier	per TB / month	22	23	6
Data Storage — Archive Tier	per TB / month	6	6.30	6
Premium Support — 24/7 P1 Response	per month (flat)	1,200	1,260	7
Sandbox / Test Environment	per environment / month	250	265	8
Additional Anomaly-Detection Model	per model / month	500	525	9
Early Termination Fee	one-time	n/a	50% of remaining contract value	10

Table 3: Full itemized pricing schedule (this appendix is set in landscape orientation to accommodate the wider table).

Appendix B: Data Processing Addendum (Summary)

The following summary is presented in a two-column layout to distinguish Provider and Client obligations side by side.

B.1 Roles of the Parties

Client is the data controller and Provider is the data processor with respect to personal data contained within Client Data, as those terms are used under applicable data protection law.

B.2 Processing Instructions

Provider shall process personal data only on documented instructions from Client, including with regard to transfers of personal data to a third country, unless required to do so by law.

B.3 Data Subject Requests

Provider shall assist Client in responding to requests from data subjects exercising their rights, at Client's reasonable cost for assistance beyond a de minimis level of effort.

Appendix D: Acceptable Use Policy

Client shall not, and shall ensure that its authorized users do not, do any of the following in connection with their use of the Services:

1. use the Services to transmit any Malicious Code;
2. attempt to reverse engineer, decompile, or disassemble the Services, except to the extent such restriction is prohibited by applicable law;
3. use the Services to store or transmit material in violation of third-party privacy or intellectual property rights;
4. use the Services in any manner that interferes with or disrupts the integrity or performance of the Services or third-party data contained therein;
5. attempt to gain unauthorized access to the Services or their related systems or networks;
6. use the Services to build a competitive product or service, or to benchmark the Services for competitive purposes without Provider's prior written consent;
7. resell, sublicense, or otherwise make the Services available to any third party except as expressly permitted under an Order Form;
8. use the Services to process special categories of personal data unless expressly agreed in writing;
9. remove or obscure any proprietary notices contained in the Services or Documentation;
10. use the Services in a manner that violates applicable export control or sanctions laws;
11. share Client's login credentials with unauthorized users, and further:
 1. each authorized user must maintain the confidentiality of their own credentials,
 2. and Client shall promptly notify Provider of any suspected unauthorized access;
12. use automated means to scrape or extract data from the Services outside of documented APIs;
13. upload content that is unlawful, defamatory, or infringing;
14. circumvent any usage limits or rate limits configured for Client's account;
15. use the Services to engage in cryptocurrency mining or similarly resource-intensive activity unrelated to the Services' intended purpose;
16. interfere with any other customer's use of the multi-tenant infrastructure underlying the Services;
17. use the Services for any purpose that could reasonably be expected to expose Provider to criminal or civil liability;
18. attempt to access another customer's Client Data or configuration without authorization.

D.1 Enforcement

Provider may suspend Client's or an authorized user's access to the Services immediately upon notice if Provider reasonably believes this Acceptable Use Policy has been violated in a manner that poses a security or legal risk, and shall restore access promptly once the risk has been remediated.

D.2 Reporting Violations

Suspected violations of this Acceptable Use Policy may be reported to Provider's trust and safety team via the contact details published at <https://example.com/nimbus-analytics/report-abuse> (illustrative URL for this fictional test document).

Appendix E: Glossary of Defined Terms

The following glossary supplements the definitions in Section 1 and applies throughout this Agreement and all Order Forms.

API — Application Programming Interface — the set of protocols Provider publishes for programmatic access to the Services.

Authorized User — An individual employee, contractor, or agent of Client who is authorized to access the Services under Client's account.

Change Management Board — The joint Provider–Client committee responsible for reviewing and approving Change Orders exceeding US\$25,000 in value.

Client Environment — The set of dashboards, connectors, and configurations provisioned for Client within the multi-tenant Services infrastructure.

Data Residency Region — The geographic region in which Client Data is stored at rest, as selected by Client in the applicable Order Form.

Escalation Contact — The named individual designated by each Party to receive and act on Severity 1 incident notifications.

Go-Live Date — The date on which the Services are made available to Client's authorized users for production use following implementation.

Incident — Any unplanned interruption to, or reduction in the quality of, the Services.

Key Performance Indicator (KPI) — A quantifiable metric surfaced within the Managed Analytics Platform to track retail performance.

Onboarding Plan — The mutually agreed project plan governing implementation activities during the first ninety (90) days following the Order Effective Date.

Production Environment — The live instance of the Services used for Client's day-to-day retail operations, as distinguished from any Sandbox / Test Environment.

Renewal Notice — Written notice of intent not to renew, delivered in accordance with Section 3.2.

Root Cause Analysis (RCA) — A written report, delivered within five (5) Business Days of resolution of a Severity 1 Incident, describing the cause, impact, and remediation of that Incident.

Severity Level — The classification (Severity 1 through Severity 4) assigned to an Incident based on its business impact, as defined in the Support Handbook.

Support Handbook — Provider's then-current published documentation describing support processes, severity definitions, and escalation paths.

Trust Center — Provider's public-facing repository of security, compliance, and privacy documentation.

Uptime Percentage — The percentage of total minutes in a calendar month during which the Services were available, excluding Scheduled Maintenance Windows.

Volume Tier — The pricing tier applicable to Client based on the number of retail locations, as set out in Section 4.1.

Anomaly-Detection Model — A statistical or machine-learning model deployed within the Managed Analytics Platform to flag deviations in shrinkage, demand, or other retail KPIs from expected baselines.

Business Review — A periodic meeting, typically quarterly, between Provider's and Client's account teams to review Service performance, Uptime Percentage, and upcoming roadmap items.

Change Management Threshold — The US\$25,000 value above which a proposed Change Order must be reviewed by the Change Management Board before taking effect, as referenced in Section 2.4.

Connector — A pre-built or custom integration that ingests data from a Client source system into the Managed Analytics Platform.

Dashboard — A configurable visual interface within the Managed Analytics Platform presenting one or more KPIs to authorized users.

Data Processing Addendum (DPA) — The data protection terms attached as Appendix B, governing Provider's processing of personal data contained within Client Data.

Discovery Phase — The first phase of Provider's implementation methodology described in Section 2.3, during which source systems and data schemas are cataloged.

Executive Sponsor — The senior individual designated by each Party to participate in dispute escalation under Section 10.1.

Implementation Lead — The Provider team member responsible for coordinating implementation activities during the Discovery, Configuration, and User Acceptance Testing phases.

Managed Analytics Platform — Provider's core cloud-based analytics offering described in Section 2, comprising ingestion pipelines, dashboards, and anomaly-detection features.

Order Form Reference — The unique alphanumeric identifier assigned to each Order Form for tracking and invoicing purposes.

Professional Services — Time-and-materials implementation, migration, and custom development services described in Section 2.

Sandbox Environment — A non-production instance of the Services used for testing configuration changes prior to deployment to the Production Environment.

User Acceptance Testing (UAT) — The third phase of Provider's implementation methodology, during which designated Client personnel validate configured dashboards and reports.

Appendix F: Sample Order Form

This Appendix presents an illustrative, fully completed Order Form for reference purposes. Actual Order Forms are executed separately and reference this Agreement by its document reference number.

Order Form Reference	NA-ORG-OF-2026-014-01
Client Legal Entity	Orchard Retail Group LLC
Volume Tier	Scale (26–100 retail locations)
Number of Retail Locations at Order Effective Date	48
Subscription Term	36 months from the Order Effective Date
Monthly Fee	US\$8,900
Data Residency Region	United States (East)
Implementation Start Date	15 August 2026
Target Go-Live Date	1 November 2026
Primary Escalation Contact (Client)	VP, Retail Operations, Orchard Retail Group LLC
Primary Escalation Contact (Provider)	Director of Customer Success, Nimbus Analytics Pvt. Ltd.

Table 4: Sample completed Order Form (illustrative).

F.1 Signatures

This Order Form is governed by, and incorporates by reference, the Master Services Agreement referenced above. Capitalized terms not defined herein have the meanings given in the Master Services Agreement.

Appendix G: Support Severity Levels

Provider classifies support tickets according to the severity levels in Table 5 below, each with the response and update commitments indicated.

Severity Level	Description	Initial Response	Update Cadence
Severity 1 (Critical)	Complete loss of service or a critical function unavailable in Production Environment with no workaround.	< 1 hour	Continuous until resolved or downgraded
Severity 2 (High)	Major function impaired with a workaround, or significant performance degradation.	< 4 business hours	Business hours until resolved or downgraded
Severity 3 (Medium)	Minor function impaired with minimal impact on business operations.	< 1 business day	Business hours
Severity 4 (Low)	General questions, minor cosmetic issues, or enhancement requests.	< 3 business days	Business hours

Table 5: Support severity level definitions and response commitments.

G.1 Root Cause Analysis

For every Severity 1 Incident, Provider shall deliver a Root Cause Analysis to Client within five (5) Business Days of resolution, describing the cause, business impact, and remediation steps taken and planned.

G.2 Support Channels

Client may submit support tickets via Provider's support portal, by email to the address specified in the Support Handbook, or, for Severity 1 Incidents only, via the 24/7 emergency hotline.

Appendix H: Signature Page

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

NIMBUS ANALYTICS PVT. LTD.

By: _____
Name: _____
Title: _____
Date: _____

ORCHARD RETAIL GROUP LLC

By: _____
Name: _____
Title: _____
Date: _____

~~duly authorized representatives of both Parties~~ ~~either Party's procurement lead~~
~~any other provision or of the same provision on a future occasion~~ ~~any future breach~~

$$I = P \frac{r}{365} \times t$$

Notes

1. "Business Day" excludes Saturdays, Sundays, and public holidays observed in the jurisdiction of the Client's registered office.

[↩](#)

2. See Appendix A for the complete fee schedule, including volume-tier discounts effective from the second Contract Year.

[↩](#)

3. Interest accrues daily and is calculated on a 365-day-year basis, compounded monthly.

[↩](#)

4. Uptime is measured via the Provider's synthetic monitoring probes at five-minute intervals, excluding Scheduled Maintenance Windows.

[↩](#)

5. A Force Majeure Event does not include a party's inability to pay for reasons other than the event itself.

[↩](#)

1. For historical background, Provider's Managed Analytics Platform was first made generally available in 2021 and has since been deployed across several hundred fictional retail environments for the purposes of this test document.

[↩](#)

2. Arbitration costs referenced in Section 10.5 are allocated per the arbitrator's discretion and are separate from each Party's own attorneys' fees incurred prior to any fee-shifting award.

[↩](#)